FRONTEX

Warsaw, 20/10/2022

FINAL SIR REPORT

14577/2021 – SIR Cat. 1 – FSC Aerial Surveillance 2021

SI-Handler: Fundamental Rights Office

Key Points

Incident reported:
Alarm Phone alleged that the Libyan Coast Guard was shooting at migrants during a search and rescue operation in the Maltese Search and Rescue Region (SRR) on 24/11/2021.

Possible violation of fundamental rights enquired:

- Human dignity (Article 1 of the Charter of Fundamental Rights of the European Union);
- Right to life (Article 2 of the Charter of Fundamental Rights of the European Union)
- Right to integrity of the person (Article 3 of the Charter of Fundamental Rights of the European Union);
- Prohibition of inhuman or degrading treatment (Article 4 of the Charter of Fundamental Rights of the European Union, Article 7 of the International Covenant on Civil and Political Rights);
- Obligation to conduct rescue operations in accordance with international human rights standards and maritime law obligations, including disembarkation in a place of safety (SAR and SOLAS Conventions).

Party allegedly involved in the incident: Officers of the third country (Libya), Frontex Surveillance Aircraft (as observer).

Conclusion and impact:
The Fundamental Rights Office is aware of a migrant boat that was sighted by Frontex in the area where Alarm Phone reported the incident but was not able to assess whether the vessels are the same. Furthermore, as regards the migrant boat sighted by the Frontex Surveillance Aircraft, a revision of sighting and mission reports as well as exchange with respective Frontex Team Leaders and managers responsible for aerial surveillance made clear that the Frontex asset did not witness any Libyan intervention. For this reason, the occurrence of the incident could not be corroborated using internal data.

At the same time, the Fundamental Rights Office underlines that a similar incident (the Libyan Coast Guard shooting at migrants) was well documented in SIR 13489/2021 and expresses concern about the treatment of migrants during SAR by the former. Additionally, the Fundamental Rights Office is concerned about the safety of all rescued migrants upon disembarkation, considering the reporting by relevant IO and NGO on detention conditions in Libya. In this respect, the Fundamental Rights Office invites dialogue on better coordination of search and rescue (SAR) activities in Central Mediterranean region that takes into consideration that Libya cannot be considered a place of safety.

Description of the event - Timeline

Operational Area

On 24/11/2021 at 06.00 UTC, Heron 1 detected a blue wooden boat equipped with two outboard engines sailing at 5 knots in northern direction at position [redacted] (Libyan SAR zone). An estimate of more than 50 people were presumed on board the vessel (sighting number FSA [redacted]). The sea state at that point was 2. [redacted]EMT informed the competent MRCCs of the sighting.

Reporting Tools

Reporting Tools

Operational Area
The same vessel was sighted again on 24/11/2021 at 08.20 UTC, at position [redacted] (Libyan SAR zone) heading north. At that time a Libyan PV was spotted 23 NM from the vessel.

Operational Area
A final update was gathered at 12:57 UTC: the blue wooden boat was detected mobile at position [redacted] (Maltese SAR) with the Libyan PV approximately 4 NM away, heading towards the migrant boat. This last position was provided based mainly on the radar sensor while Heron 1 was flying in Libyan FIR, no visual confirmation was possible.

The Alarm Phone tweeted on 24/11/2021 at 15:36 UTC: 'Squared SOS, the so-called Libyan coastguard is shooting at a boat in distress in Maltese SAR zone! We were called by a group who said they are being chased & shot at by the so-called Libyan coastguard. We urge all authorities to order them to stop the fire & to put an end to this violence' The position indicated on the map joint to the message was the following: DD: 34.65, 12.617 – DMS: 34 38' 0", 12 37' 0"

In a follow up message on 24/11/2021 at 16:46 UTC, Alarm Phone tweeted: 'We lost contact to the boat & are worried about the situation. A relative told us there are 85 people on board. We don't know if EU authorities are trying to stop this attack by the sc Libyan coastguard. We called @Armed_Forces_MT & @guardiacostiera but they refuse to share info.'

At 24/11/2021, at 18:55 UTC, Frontex FSA team leader sent an enquiry to the Italian and Maltese interlocutors attaching the initial Alarm Phone tweet (from 15:36 UTC) and asking for information on the case.

On 24 /11/2021 at 20:12 UTC, Alarm Phone tweeted: 'We are worried about the 85 people who were attacked by a Libyan asset in #Malta SAR. We haven't had contact with them for 4 hours now and the #EU authorities @Armed_Forces_MT do not even pick up the phone. Migration is not a crime, shooting people is! #BlackLivesMatters'.

Reporting Tool
On 25/11/2021, at 08:40 (time zone unknown), the Maltese Liaision Officer to FX[redacted] replied that Maltese authorities did not have any information on this case and hence, could not comment on whether it happened or not.

On 25/11/2021 at 17:29 UTC Alarm Phone tweeted: 'Warning signal' Illegal pushback to #Libya from Malta SAR! We were told that after being shot by the so-called Libyan Coastguard 20nm within Malta SAR, the ~85 people were illegally forced back to #Libya! This is another violation on behalf of @Armed_Forces_MT! We will keep them accountable.

Reporting Tool
Sat 27/11/2021 02:04, Frontex Team Leader was informed by the Italian SAR expert that the Italian MRCC had closed the case of sighting[redacted] in their system given the last tweet of Alarm Phone (at 17:29 UTC) about the interception of a migrant vessel by the Libyan coast guard.

Furthermore, on 26/11/2021, replying to an enquiry by the Fundamental Rights Office, the Frontex Situational Centre stated that:

Reporting Tool
1. [redacted] does not have any info on that case from official sources and does not know whether it did happen or not.

2. If [the incident as reported by Alarm Phone] did happen and if the information was published near to real-time from the exact time when the shootings were fired, then there is the possibility that it occurred while Frontex Surveillance Aircraft was flying in Central Med but far from the position reported by Alarm Phone.

Reporting Tool
3. FSA didn't witness any shooting nearby the migrant boats spotted/monitored [reference to sighting [redacted]].

Finally, the Fundamental Rights Office takes note of the relative high number of sightings of 9 vessels by Heron 1 on 24/11/2021 requiring the aircraft to fly back and forth between them to provide updates.

Information collected – Contributors/Entities consulted – Follow-up

SIR 14577/2021 Cat. 1 was launched on 6 December 2021.

Assessment

The Fundamental Rights Office underlines that it was not possible to conclusively establish that the boat referred to by Alarm Phone and sighting [redacted] are the same. Reporting Tool

The Fundamental Rights Office reviewed sighting forms and the mission report of Heron 1 and confirms that the drone was not on-site and hence not monitoring any interception of the Libyan coast guard of migrant boat [redacted]. Furthermore, when Alarm Phone informed about allegations of the Libyan coast guard (15:36 UTC) shooting at migrants, the drone had already proceeded to other locations where it monitored another migrant boat in a different sector. Reporting Tool

Conduct of the rescue by the Libyan authorities:

- Based on the information available the Fundamental Rights Office cannot establish with certainty that the Libyan Coast Guard officers used physical force amounting to inhuman or degrading treatment of migrants or put their lives at risk during the operation. This is due to a lack of video-footage to corroborate the statement provided by Alarm Phone.

- At the same time, the Fundamental Rights Office notes that abuse of migrants in form of excessive use of force by Libyan officers has been documented previously in SIRs 13489/2021, 12634/2022 and [redacted] giving rise to serious concern regarding the treatment of migrants by the Libyan Coast Guard during SAR operations.

Reporting Tool

SAR activities and considerations regarding disembarkation in a place of safety:

- The Fundamental Rights Office takes note of the timely sharing of information about the migrant boat by Frontex with all relevant MRCCs in the present case. It likewise notes that the initial classification of the sighted migrant boat and overall situation (overcrowded, far from the shoreline) triggered the notification to the competent MRCC, as formally required by the applicable procedures.

- The Fundamental Rights Office also notes that the MRCC responsible for the SAR region in which the rescued persons were recovered, in addition to ensuring their prompt assistance and coordination to protect the right to life of those onboard vessels in distress, is primarily responsible for arranging for a place of safety. Generally, identification of a place of safety in the context of SAR is an important safeguard of the principle of *non-refoulement*. According to international human rights and refugee law and IMO Guidelines on the Treatment of Persons Rescued at Sea (Resolution MSC.167(78)), disembarkation of rescued asylum-seekers and refugees in territories where their lives or freedoms would be threatened must be avoided.

- According to Article 80 of Regulation 1896/2019 also application to EU MS, in the performance of its tasks, the European Border and Coast Guard shall ensure that "in the performance of its tasks, no person is disembarked in, forced to enter, conducted to, or otherwise handed over or returned to the authorities of a country where there is, inter alia, a serious risk that he or she would be subjected to the death penalty, torture, persecution, or other inhuman or degrading treatment or punishment, or where his or her life or freedom would be threatened on account of his or her race, religion, nationality, sexual orientation, membership of a particular social group or political opinion".

- The Fundamental Rights Office further notes numerous reports issued by international organisations including OHCHR, UNHCR, Council of Europe and Amnesty International which point to the fact that Libya cannot be considered as a safe country.

Final conclusion – Proposals – Lessons learned

In the context of:

1. allegations of abuse of migrants during rescue at sea by the Libyan authorities in the present SIR as well as documented in SIRs 13489/2021 (shooting at the migrant boat) and 12634/2022 and [redacted] (beating of migrants) ;
2. the need to balance several fundamental rights concerns during coordination of SAR activities (namely the right to life and identification of place of safety/principle of non-refoulement);
3. the involvement of Libya, even indirectly, in SAR operations in the Central Mediterranean, which is not considered a place of safety for the purposes of disembarking rescued persons according to international organisations and European Court of Human Rights case-law;

Reporting Tool

the Fundamental Rights Office considers that further discussion is needed to better coordinate SAR operations at sea in pre-frontier areas and the Central Med in particular, in order to minimize risks to fundamental rights of rescued migrants, in particular, where Frontex is involved.

Specifically, the Fundamental Rights Office recommends the following:

To Frontex

1. To continue providing SAR support in the Central Med using FSAs within the multipurpose aerial surveillance service;
2. For FSA to stay on site and continue monitoring, whenever possible, SAR operation conducted by the Libyan Coast Guard;
3. To promote a dialogue with EU Member States to ensure that rescue operations conducted in their own SAR zones are completed with disembarkation in a place of safety;
4. To strengthen communication with NGOs operating in the area with assets available for SAR activities;

To Member States' authorities

5. For EU MRCCs to support SAR activities in order to ensure that rescue operations are conducted in a manner that respects international human rights and refugee law and principles, including with regard to arranging for migrants' disembarkation in a place of safety.